

The Orissa Limitation (Recovery of Revenue) Act, 1964

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[For Statement of Objects and Reasons, see Orissa Gazette Extraordinary No. 1330/27.8.1964.](#)

[An Act to extend the period of limitation for recovery of land-revenue and rent payable to Government.](#)

[Be it enacted by the Legislature of the State of Orissa in the Fifteenth Year of the Republic of India, as follows :](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

[This Act may be called the Orissa Limitation \(Recovery of Revenue\) Act, 1964.](#)

(2)

It shall extend to the whole of the State of Orissa.

(3)

It shall come into force at once.

2.

Definitions.

- In this Act unless the context otherwise requires -

(a)

"land-revenue" means all sums assessed as land-revenue by whatever name designated or locally known and payable to the State Government;

(b)

"rent" means any sum payable as rent to the State Government for the use and occupation of lands held for the purposes of cultivation and includes rent payable to the State Government by a person who is a Chandnadar within the meaning of the Orissa Tenancy Act, 1913 (B. and O. Act

2 of 1913

).

3.

Limitation for recovery of arrears of land.

- revenue and rent-Notwithstanding anything contained in any other law for the time being in force or in any order, custom or usage having the force of law the period of limitation for the recovery of arrears of land-revenue or rent shall be ten years from the date on which such arrears become due :

Provided that the period of limitation shall be five years from the date of the commencement of this Act in respect of arrears which have accrued due prior to the said date if the period of limitation applicable thereto before that date was more than ten years.

4.

Removal of doubts.

- For the removal of doubts it is hereby declared that nothing contained in this Act shall be construed so as to revive the claim for any such dues as aforesaid the recovery of which has become time-barred prior to the coming into force of this Act.

5.

Amendment of Section 12, Orissa Act 11 of 1962.

- For Section 12 of the Orissa Cess Act, 1962 (Orissa Act 11 of 1962) the following section shall be substituted, namely:
"12. If any instalment of cess or part thereof payable to Government or intermediary is not paid within fifteen days from the date on which the same becomes due, the amount of such instalment or part thereof, together with interest at the rate of six per centum per annum calculated from the date on which such instalment became due and the cost of recovering the same, may be recovered at any time within-

(a)

three years after it becomes due, if the same is payable to an intermediary; and

(b)

ten years after it becomes due, if the same is payable to Government."

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